

Musheer Khan v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 24 March 2025 · 2025:AHC-LKO:16776-DB · Writ-C No. 2669 of 2025 · **Writ disposed of; Executive Engineer directed to consider the bill objection under clause 6.5, and the competent authority to consider the permanent-disconnection application, both within three weeks.**

HEADNOTE

A consumer disputing an electricity bill is to pursue clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of by directing the Executive Engineer to look into the objection under that provision, and the competent authority to consider a pending application for permanent disconnection, both with expedition.

FACTUAL SUMMARY

Musheer Khan petitioned the Lucknow Bench of the Allahabad High Court disputing an electricity bill. He claimed he had already approached the Executive Engineer. It was also stated that he had applied for permanent disconnection of supply. The Division Bench heard the writ and disposed of it without examining the bill or the disconnection request on the merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

The remedy for a disputed electricity bill lies in clause 6.5 of the U.P. Electricity Supply Code, 2005. Where the consumer has already approached the Executive Engineer, that authority is to look into the matter and do the needful as per that provision and the law, with expedition (here, within three weeks of receipt of a certified copy). A pending application for permanent disconnection is to be considered in the same period by the competent authority. The writ is disposed of on that direction; the bill is not quashed and connection is not ordered. ¶ 3

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer disputing an electricity bill is to pursue clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY BILL DISPUTE

Relegated to the Executive Engineer under clause 6.5. ¶ 3

NOT DECIDED — APPLICATION FOR PERMANENT DISCONNECTION

Directed to be considered by the competent authority; not decided on merits. ¶ 3